



# AIA® Document A105® – 2017

## Standard Short Form of Agreement Between Owner and Contractor

AGREEMENT made as of the \_\_\_\_\_ day of April in the year Two Thousand Twenty-four  
(In words, indicate day, month and year.)

BETWEEN the Owner:  
(Name, legal status, address and other information)

Brecksville-Broadview Heights City Schools  
6638 Mill Rd.  
Brecksville, OH 44141

and the Contractor:  
(Name, legal status, address and other information)

Ohio Paving and Construction  
38220 Willoughby Parkway  
Willoughby, OH 44094

for the following Project:  
(Name, location and detailed description)

Repair/Replacement of Asphalt Pavement  
Brecksville-Broadview Heights High School/Middle School/Elementary School 2024  
6658 Mill Rd.  
Brecksville, OH 44141

The Architect: Where "Architect" appears in this document, it shall be read as "Landscape Architect."  
(Name, legal status, address and other information)

Behnke Associates, Inc. dba Behnke Landscape Architecture  
2658 Scranton Rd., Suite 2  
Cleveland, OH 44113

The Owner and Contractor agree as follows.  
Construct the repair and replacement of asphalt pavement per the drawings, specifications and contract sum as referenced below.

### ADDITIONS AND DELETIONS:

The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added necessary information and where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

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### ARTICLE 1 THE CONTRACT DOCUMENTS

The Contractor shall complete the Work described in the Contract Documents for the Project. The Contract Documents consist of

- .1 this Agreement signed by the Owner and Contractor;
- .2 the drawings and specifications prepared by the Architect, dated ---, and enumerated as follows:

#### Drawings:

| Number                 | Title | Date |
|------------------------|-------|------|
| See attached EXHIBIT A |       |      |

#### Specifications:

| Section                | Title | Pages |
|------------------------|-------|-------|
| See attached EXHIBIT B |       |       |

- .3 addenda prepared by the Architect as follows:

| Number                 | Date | Pages |
|------------------------|------|-------|
| See attached EXHIBIT C |      |       |

- .4 written orders for changes in the Work, pursuant to Article 10, issued after execution of this Agreement; and
- .5 other documents, if any, identified as follows:

N/A

## ARTICLE 2 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION

§ 2.1 The Contract Time is the number of calendar days available to the Contractor to substantially complete the Work.

### § 2.2 Date of Commencement:

Unless otherwise set forth below, the date of commencement shall be the date of this Agreement.  
(Insert the date of commencement if other than the date of this Agreement.)

Upon Notice to Proceed.

### § 2.3 Substantial Completion:

Subject to adjustments of the Contract Time as provided in the Contract Documents, the Contractor shall achieve Substantial Completion, as defined in Section 12.5, of the entire Work:  
(Check the appropriate box and complete the necessary information.)

☐ Not later than ( ) calendar days from the date of commencement.

☒ By the following date: August 21, 2024

## ARTICLE 3 CONTRACT SUM

§ 3.1 The Contract Sum shall include all items and services necessary for the proper execution and completion of the Work. Subject to additions and deductions in accordance with Article 10, the Contract Sum is:

Three Hundred Four Thousand Six Hundred Twenty-six dollars and 90/100 (\$ 304,626.90 )  
Base Bid \$264,992.00 plus Alt. Bid #2 \$14,634.90 plus a Contingency of \$25,000.00.

§ 3.2 For purposes of payment, the Contract Sum includes the following values related to portions of the Work:  
(Itemize the Contract Sum among the major portions of the Work.)

| Portion of the Work    | Value |
|------------------------|-------|
| See attached EXHIBIT D |       |

§ 3.3 The Contract Sum is based upon the following alternates, if any, which are described in the Contract Documents and hereby accepted by the Owner:

(Identify the accepted alternates. If the bidding or proposal documents permit the Owner to accept other alternates subsequent to the execution of this Agreement, attach a schedule of such other alternates showing the amount for each and the date when that amount expires.)

Alternate Bid #2.

§ 3.4 Allowances, if any, included in the Contract Sum are as follows:  
(Identify each allowance.)

| Item | Price |
|------|-------|
| N/A  |       |

§ 3.5 Unit prices, if any, are as follows:

(Identify the item and state the unit price and quantity limitations, if any, to which the unit price will be applicable.)

| Item                   | Units and Limitations | Price per Unit (\$0.00) |
|------------------------|-----------------------|-------------------------|
| See attached EXHIBIT D |                       |                         |

Init.

#### ARTICLE 4 PAYMENTS

§ 4.1 Based on Contractor's Applications for Payment certified by the Architect, the Owner shall pay the Contractor, in accordance with Article 12, as follows:

*(Insert below timing for payments and provisions for withholding retainage, if any.)*

Monthly

§ 4.2 Payments due and unpaid under the Contract Documents shall bear interest from the date payment is due at the rate below, or in the absence thereof, at the legal rate prevailing at the place of the Project.

*(Insert rate of interest agreed upon, if any.)*

N/A %

#### ARTICLE 5 INSURANCE

§ 5.1 The Contractor shall maintain the following types and limits of insurance until the expiration of the period for correction of Work as set forth in Section 14.2, subject to the terms and conditions set forth in this Section 5.1:

§ 5.1.1 Commercial General Liability insurance for the Project, written on an occurrence form, with policy limits of not less than One Million dollars (\$ 1,000,000.00 ) each occurrence, Two Million dollars (\$ 2,000,000.00 ) general aggregate, and Two Million dollars (\$ 2,000,000.00 ) aggregate for products-completed operations hazard.

§ 5.1.2 Automobile Liability covering vehicles owned, and non-owned vehicles used, by the Contractor, with policy limits of not less than One Million dollars (\$ 1,000,000.00 ) per accident, for bodily injury, death of any person, and property damage arising out of the ownership, maintenance, and use of those motor vehicles along with any other statutorily required automobile coverage.

§ 5.1.3 The Contractor may achieve the required limits and coverage for Commercial General Liability and Automobile Liability through a combination of primary and excess or umbrella liability insurance, provided that such primary and excess or umbrella insurance policies result in the same or greater coverage as those required under Section 5.1.1 and 5.1.2, and in no event shall any excess or umbrella liability insurance provide narrower coverage than the primary policy. The excess policy shall not require exhaustion of the underlying limits only through the actual payment by the underlying insurers.

§ 5.1.4 Workers' Compensation at statutory limits.

§ 5.1.5 Employers' Liability with policy limits not less than Five Hundred Thousand dollars (\$ 500,000.00 ) each accident, Five Hundred Thousand dollars (\$ 500,000.00 ) each employee, and Five Hundred Thousand dollars (\$ 500,000.00 ) policy limit.

§ 5.1.6 The Contractor shall provide builder's risk insurance to cover the total value of the entire Project on a replacement cost basis.

§ 5.1.7 Other Insurance Provided by the Contractor

*(List below any other insurance coverage to be provided by the Contractor and any applicable limits.)*

Coverage

Limits

Not Applicable

§ 5.2 The Owner shall be responsible for purchasing and maintaining the Owner's usual liability insurance and shall provide property insurance to cover the value of the Owner's property. The Contractor is entitled to receive an increase in the Contract Sum equal to the insurance proceeds related to a loss for damage to the Work covered by the Owner's property insurance.

§ 5.3 The Contractor shall obtain an endorsement to its Commercial General Liability insurance policy to provide coverage for the Contractor's obligations under Section 8.12.

Init.



§ 5.4 Prior to commencement of the Work, each party shall provide certificates of insurance showing their respective coverages.

§ 5.5 Unless specifically precluded by the Owner's property insurance policy, the Owner and Contractor waive all rights against (1) each other and any of their subcontractors, suppliers, agents, and employees, each of the other; and (2) the Architect, Architect's consultants, and any of their agents and employees, for damages caused by fire or other causes of loss to the extent those losses are covered by property insurance or other insurance applicable to the Project, except such rights as they have to the proceeds of such insurance.

## ARTICLE 6 GENERAL PROVISIONS

### § 6.1 The Contract

The Contract represents the entire and integrated agreement between the parties and supersedes prior negotiations, representations or agreements, either written or oral. The Contract may be amended or modified only by a written modification in accordance with Article 10.

### § 6.2 The Work

The term "Work" means the construction and services required by the Contract Documents, and includes all other labor, materials, equipment, and services provided, or to be provided, by the Contractor to fulfill the Contractor's obligations.

### § 6.3 Intent

The intent of the Contract Documents is to include all items necessary for the proper execution and completion of the Work by the Contractor. The Contract Documents are complementary, and what is required by one shall be as binding as if required by all.

### § 6.4 Ownership and Use of Architect's Drawings, Specifications and Other Documents

Documents prepared by the Architect are instruments of the Architect's service for use solely with respect to this Project. The Architect shall retain all common law, statutory, and other reserved rights, including the copyright. The Contractor, subcontractors, sub-subcontractors, and suppliers are authorized to use and reproduce the instruments of service solely and exclusively for execution of the Work. The instruments of service may not be used for other Projects or for additions to this Project outside the scope of the Work without the specific written consent of the Architect.

### § 6.5 Electronic Notice

Written notice under this Agreement may be given by one party to the other by email as set forth below.

*(Insert requirements for delivering written notice by email such as name, title, and email address of the recipient, and whether and how the system will be required to generate a read receipt for the transmission.)*

Brian Koss      [kossb@BBHCSD.org](mailto:kossb@BBHCSD.org)  
Facility and Safety Coordinator

Tom Zarfoss      [tzarfoss@behnkela.com](mailto:tzarfoss@behnkela.com)

## ARTICLE 7 OWNER

### § 7.1 Information and Services Required of the Owner

§ 7.1.1 If requested by the Contractor, the Owner shall furnish all necessary surveys and a legal description of the site.

§ 7.1.2 Except for permits and fees under Section 8.7.1 that are the responsibility of the Contractor, the Owner shall obtain and pay for other necessary approvals, easements, assessments, and charges.

§ 7.1.3 Prior to commencement of the Work, at the written request of the Contractor, the Owner shall furnish to the Contractor reasonable evidence that the Owner has made financial arrangements to fulfill the Owner's obligations under the Contract. The Contractor shall have no obligation to commence the Work until the Owner provides such evidence.

## **§ 7.2 Owner's Right to Stop the Work**

If the Contractor fails to correct Work which is not in accordance with the Contract Documents, the Owner may direct the Contractor in writing to stop the Work until the correction is made.

## **§ 7.3 Owner's Right to Carry Out the Work**

If the Contractor defaults or neglects to carry out the Work in accordance with the Contract Documents and fails within a seven day period after receipt of written notice from the Owner to commence and continue correction of such default or neglect with diligence and promptness, the Owner may, without prejudice to other remedies, correct such deficiencies. In such case, the Architect may withhold or nullify a Certificate for Payment in whole or in part, to the extent reasonably necessary to reimburse the Owner for the cost of correction, provided the actions of the Owner and amounts charged to the Contractor were approved by the Architect.

## **§ 7.4 Owner's Right to Perform Construction and to Award Separate Contracts**

**§ 7.4.1** The Owner reserves the right to perform construction or operations related to the Project with the Owner's own forces, and to award separate contracts in connection with other portions of the Project.

**§ 7.4.2** The Contractor shall coordinate and cooperate with the Owner's own forces and separate contractors employed by the Owner.

## **ARTICLE 8 CONTRACTOR**

### **§ 8.1 Review of Contract Documents and Field Conditions by Contractor**

**§ 8.1.1** Execution of the Contract by the Contractor is a representation that the Contractor has visited the site, become familiar with local conditions under which the Work is to be performed, and correlated personal observations with requirements of the Contract Documents.

**§ 8.1.2** The Contractor shall carefully study and compare the Contract Documents with each other and with information furnished by the Owner. Before commencing activities, the Contractor shall (1) take field measurements and verify field conditions; (2) carefully compare this and other information known to the Contractor with the Contract Documents; and (3) promptly report errors, inconsistencies, or omissions discovered to the Architect.

### **§ 8.2 Contractor's Construction Schedule**

The Contractor, promptly after being awarded the Contract, shall prepare and submit for the Owner's and Architect's information a Contractor's construction schedule for the Work.

### **§ 8.3 Supervision and Construction Procedures**

**§ 8.3.1** The Contractor shall supervise and direct the Work using the Contractor's best skill and attention. The Contractor shall be solely responsible for and have control over construction means, methods, techniques, sequences, and procedures, and for coordinating all portions of the Work.

**§ 8.3.2** The Contractor, as soon as practicable after award of the Contract, shall furnish in writing to the Owner, through the Architect, the names of subcontractors or suppliers for each portion of the Work. The Contractor shall not contract with any subcontractor or supplier to whom the Owner or Architect have made a timely and reasonable objection.

### **§ 8.4 Labor and Materials**

**§ 8.4.1** Unless otherwise provided in the Contract Documents, the Contractor shall provide and pay for labor, materials, equipment, tools, utilities, transportation, and other facilities and services necessary for proper execution and completion of the Work.

**§ 8.4.2** The Contractor shall enforce strict discipline and good order among the Contractor's employees and other persons carrying out the Contract Work. The Contractor shall not permit employment of unfit persons or persons not skilled in tasks assigned to them.

### **§ 8.5 Warranty**

The Contractor warrants to the Owner and Architect that: (1) materials and equipment furnished under the Contract will be new and of good quality unless otherwise required or permitted by the Contract Documents; (2) the Work will be free from defects not inherent in the quality required or permitted; and (3) the Work will conform to the

requirements of the Contract Documents. Any material or equipment warranties required by the Contract Documents shall be issued in the name of the Owner, or shall be transferable to the Owner, and shall commence in accordance with Section 12.5.

#### **§ 8.6 Taxes**

The Contractor shall pay sales, consumer, use, and similar taxes that are legally required when the Contract is executed.

#### **§ 8.7 Permits, Fees and Notices**

**§ 8.7.1** The Contractor shall obtain and pay for the building permit and other permits and governmental fees, licenses, and inspections necessary for proper execution and completion of the Work.

**§ 8.7.2** The Contractor shall comply with and give notices required by agencies having jurisdiction over the Work. If the Contractor performs Work knowing it to be contrary to applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, the Contractor shall assume full responsibility for such Work and shall bear the attributable costs. The Contractor shall promptly notify the Architect in writing of any known inconsistencies in the Contract Documents with such governmental laws, rules, and regulations.

#### **§ 8.8 Submittals**

The Contractor shall promptly review, approve in writing, and submit to the Architect shop drawings, product data, samples, and similar submittals required by the Contract Documents. Shop drawings, product data, samples, and similar submittals are not Contract Documents.

#### **§ 8.9 Use of Site**

The Contractor shall confine operations at the site to areas permitted by law, ordinances, permits, the Contract Documents, and the Owner.

#### **§ 8.10 Cutting and Patching**

The Contractor shall be responsible for cutting, fitting, or patching required to complete the Work or to make its parts fit together properly.

#### **§ 8.11 Cleaning Up**

The Contractor shall keep the premises and surrounding area free from accumulation of debris and trash related to the Work. At the completion of the Work, the Contractor shall remove its tools, construction equipment, machinery, and surplus material; and shall properly dispose of waste materials.

#### **§ 8.12 Indemnification**

To the fullest extent permitted by law, the Contractor shall indemnify and hold harmless the Owner, Architect, Architect's consultants, and agents and employees of any of them, from and against claims, damages, losses and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), but only to the extent caused by the negligent acts or omissions of the Contractor, a subcontractor, anyone directly or indirectly employed by them or anyone for whose acts they may be liable, regardless of whether or not such claim, damage, loss or expense is caused in part by a party indemnified hereunder.

### **ARTICLE 9 ARCHITECT**

**§ 9.1** The Architect will provide administration of the Contract as described in the Contract Documents. The Architect will have authority to act on behalf of the Owner only to the extent provided in the Contract Documents.

**§ 9.2** The Architect will visit the site at intervals appropriate to the stage of construction to become generally familiar with the progress and quality of the Work.

**§ 9.3** The Architect will not have control over or charge of, and will not be responsible for, construction means, methods, techniques, sequences, or procedures, or for safety precautions and programs in connection with the Work, since these are solely the Contractor's responsibility. The Architect will not be responsible for the Contractor's failure to carry out the Work in accordance with the Contract Documents.

§ 9.4 Based on the Architect's observations and evaluations of the Contractor's Applications for Payment, the Architect will review and certify the amounts due the Contractor.

§ 9.5 The Architect has authority to reject Work that does not conform to the Contract Documents.

§ 9.6 The Architect will promptly review and approve or take appropriate action upon Contractor's submittals, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents.

§ 9.7 On written request from either the Owner or Contractor, the Architect will promptly interpret and decide matters concerning performance under, and requirements of, the Contract Documents.

§ 9.8 Interpretations and decisions of the Architect will be consistent with the intent of, and reasonably inferable from the Contract Documents, and will be in writing or in the form of drawings. When making such interpretations and decisions, the Architect will endeavor to secure faithful performance by both Owner and Contractor, will not show partiality to either and will not be liable for results of interpretations or decisions rendered in good faith.

§ 9.9 The Architect's duties, responsibilities, and limits of authority as described in the Contract Documents shall not be changed without written consent of the Owner, Contractor, and Architect. Consent shall not be unreasonably withheld.

#### **ARTICLE 10 CHANGES IN THE WORK**

§ 10.1 The Owner, without invalidating the Contract, may order changes in the Work within the general scope of the Contract, consisting of additions, deletions or other revisions, and the Contract Sum and Contract Time shall be adjusted accordingly, in writing. If the Owner and Contractor cannot agree to a change in the Contract Sum, the Owner shall pay the Contractor its actual cost plus reasonable overhead and profit.

§ 10.2 The Architect may authorize or order minor changes in the Work that are consistent with the intent of the Contract Documents and do not involve an adjustment in the Contract Sum or an extension of the Contract Time. Such authorization or order shall be in writing and shall be binding on the Owner and Contractor. The Contractor shall proceed with such minor changes promptly.

§ 10.3 If concealed or unknown physical conditions are encountered at the site that differ materially from those indicated in the Contract Documents or from those conditions ordinarily found to exist, the Contract Sum and Contract Time shall be subject to equitable adjustment.

#### **ARTICLE 11 TIME**

§ 11.1 Time limits stated in the Contract Documents are of the essence of the Contract.

§ 11.2 If the Contractor is delayed at any time in progress of the Work by changes ordered in the Work, or by labor disputes, fire, unusual delay in deliveries, unavoidable casualties, or other causes beyond the Contractor's control, the Contract Time shall be subject to equitable adjustment.

§ 11.3 Costs caused by delays or by improperly timed activities or defective construction shall be borne by the responsible party.

#### **ARTICLE 12 PAYMENTS AND COMPLETION**

##### **§ 12.1 Contract Sum**

The Contract Sum stated in this Agreement, including authorized adjustments, is the total amount payable by the Owner to the Contractor for performance of the Work under the Contract Documents.

##### **§ 12.2 Applications for Payment**

§ 12.2.1 At least ten days before the date established for each progress payment, the Contractor shall submit to the Architect an itemized Application for Payment for Work completed in accordance with the values stated in this Agreement. The Application shall be supported by data substantiating the Contractor's right to payment as the Owner or Architect may reasonably require, such as evidence of payments made to, and waivers of liens from, subcontractors and



suppliers. Payments shall be made on account of materials and equipment delivered and suitably stored at the site for subsequent incorporation in the Work. If approved in advance by the Owner, payment may similarly be made for materials and equipment stored, and protected from damage, off the site at a location agreed upon in writing.

§ 12.2.2 The Contractor warrants that title to all Work covered by an Application for Payment will pass to the Owner no later than the time of payment. The Contractor further warrants that upon submittal of an Application for Payment, all Work for which Certificates for Payment have been previously issued and payments received from the Owner shall, to the best of the Contractor's knowledge, information, and belief, be free and clear of liens, claims, security interests, or other encumbrances adverse to the Owner's interests.

### § 12.3 Certificates for Payment

The Architect will, within seven days after receipt of the Contractor's Application for Payment, either (1) issue to the Owner a Certificate for Payment in the full amount of the Application for Payment, with a copy to the Contractor; (2) issue to the Owner a Certificate for Payment for such amount as the Architect determines is properly due, and notify the Contractor and Owner in writing of the Architect's reasons for withholding certification in part; or (3) withhold certification of the entire Application for Payment, and notify the Contractor and Owner of the Architect's reason for withholding certification in whole. If certification or notification is not made within such seven day period, the Contractor may, upon seven additional days' written notice to the Owner and Architect, stop the Work until payment of the amount owing has been received. The Contract Time and the Contract Sum shall be equitably adjusted due to the delay.

### § 12.4 Progress Payments

§ 12.4.1 After the Architect has issued a Certificate for Payment, the Owner shall make payment in the manner provided in the Contract Documents.

§ 12.4.2 The Contractor shall promptly pay each subcontractor and supplier, upon receipt of payment from the Owner, an amount determined in accordance with the terms of the applicable subcontracts and purchase orders.

§ 12.4.3 Neither the Owner nor the Architect shall have responsibility for payments to a subcontractor or supplier.

§ 12.4.4 A Certificate for Payment, a progress payment, or partial or entire use or occupancy of the Project by the Owner shall not constitute acceptance of Work not in accordance with the requirements of the Contract Documents.

### § 12.5 Substantial Completion

§ 12.5.1 Substantial Completion is the stage in the progress of the Work when the Work or designated portion thereof is sufficiently complete in accordance with the Contract Documents so the Owner can occupy or utilize the Work for its intended use.

§ 12.5.2 When the Contractor believes that the Work or designated portion thereof is substantially complete, it will notify the Architect and the Architect will make an inspection to determine whether the Work is substantially complete. When the Architect determines that the Work is substantially complete, the Architect shall prepare a Certificate of Substantial Completion that shall establish the date of Substantial Completion, establish the responsibilities of the Owner and Contractor, and fix the time within which the Contractor shall finish all items on the list accompanying the Certificate. Warranties required by the Contract Documents shall commence on the date of Substantial Completion of the Work or designated portion thereof unless otherwise provided in the Certificate of Substantial Completion.

### § 12.6 Final Completion and Final Payment

§ 12.6.1 Upon receipt of a final Application for Payment, the Architect will inspect the Work. When the Architect finds the Work acceptable and the Contract fully performed, the Architect will promptly issue a final Certificate for Payment.

§ 12.6.2 Final payment shall not become due until the Contractor submits to the Architect releases and waivers of liens, and data establishing payment or satisfaction of obligations, such as receipts, claims, security interests, or encumbrances arising out of the Contract.

§ 12.6.3 Acceptance of final payment by the Contractor, a subcontractor or supplier shall constitute a waiver of claims by that payee except those previously made in writing and identified by that payee as unsettled at the time of final Application for Payment.

#### **ARTICLE 13 PROTECTION OF PERSONS AND PROPERTY**

The Contractor shall be responsible for initiating, maintaining and supervising all safety precautions and programs, including all those required by law in connection with performance of the Contract. The Contractor shall take reasonable precautions to prevent damage, injury, or loss to employees on the Work and other persons who may be affected thereby, the Work and materials and equipment to be incorporated therein, and other property at the site or adjacent thereto. The Contractor shall promptly remedy damage and loss to property caused in whole or in part by the Contractor, or by anyone for whose acts the Contractor may be liable.

#### **ARTICLE 14 CORRECTION OF WORK**

§ 14.1 The Contractor shall promptly correct Work rejected by the Architect as failing to conform to the requirements of the Contract Documents. The Contractor shall bear the cost of correcting such rejected Work, including the costs of uncovering, replacement, and additional testing.

§ 14.2 In addition to the Contractor's other obligations including warranties under the Contract, the Contractor shall, for a period of one year after Substantial Completion, correct work not conforming to the requirements of the Contract Documents.

§ 14.3 If the Contractor fails to correct nonconforming Work within a reasonable time, the Owner may correct it in accordance with Section 7.3.

#### **ARTICLE 15 MISCELLANEOUS PROVISIONS**

##### **§ 15.1 Assignment of Contract**

Neither party to the Contract shall assign the Contract as a whole without written consent of the other.

##### **§ 15.2 Tests and Inspections**

§ 15.2.1 At the appropriate times, the Contractor shall arrange and bear cost of tests, inspections, and approvals of portions of the Work required by the Contract Documents or by laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities.

§ 15.2.2 If the Architect requires additional testing, the Contractor shall perform those tests.

§ 15.2.3 The Owner shall bear cost of tests, inspections, or approvals that do not become requirements until after the Contract is executed. The Owner shall directly arrange and pay for tests, inspections, or approvals where building codes or applicable laws or regulations so require.

##### **§ 15.3 Governing Law**

The Contract shall be governed by the law of the place where the Project is located, excluding that jurisdiction's choice of law rules.

#### **ARTICLE 16 TERMINATION OF THE CONTRACT**

##### **§ 16.1 Termination by the Contractor**

If the Work is stopped under Section 12.3 for a period of 14 days through no fault of the Contractor, the Contractor may, upon seven additional days' written notice to the Owner and Architect, terminate the Contract and recover from the Owner payment for Work executed including reasonable overhead and profit, and costs incurred by reason of such termination.

##### **§ 16.2 Termination by the Owner for Cause**

§ 16.2.1 The Owner may terminate the Contract if the Contractor

- .1 repeatedly refuses or fails to supply enough properly skilled workers or proper materials;
- .2 fails to make payment to subcontractors for materials or labor in accordance with the respective agreements between the Contractor and the subcontractors;
- .3 repeatedly disregards applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of a public authority; or

.4 is otherwise guilty of substantial breach of a provision of the Contract Documents.

§ 16.2.2 When any of the above reasons exist, the Owner, after consultation with the Architect, may without prejudice to any other rights or remedies of the Owner and after giving the Contractor and the Contractor's surety, if any, seven days' written notice, terminate employment of the Contractor and may

- .1 take possession of the site and of all materials thereon owned by the Contractor, and
- .2 finish the Work by whatever reasonable method the Owner may deem expedient.

§ 16.2.3 When the Owner terminates the Contract for one of the reasons stated in Section 16.2.1, the Contractor shall not be entitled to receive further payment until the Work is finished.

§ 16.2.4 If the unpaid balance of the Contract Sum exceeds costs of finishing the Work, such excess shall be paid to the Contractor. If such costs exceed the unpaid balance, the Contractor shall pay the difference to the Owner. This obligation for payment shall survive termination of the Contract.

**§ 16.3 Termination by the Owner for Convenience**

The Owner may, at any time, terminate the Contract for the Owner's convenience and without cause. The Contractor shall be entitled to receive payment for Work executed, and costs incurred by reason of such termination, along with reasonable overhead and profit on the Work not executed.

**ARTICLE 17 OTHER TERMS AND CONDITIONS**

*(Insert any other terms or conditions below.)*

N/A

This Agreement entered into as of the day and year first written above.

*(If required by law, insert cancellation period, disclosures or other warning statements above the signatures.)*

\_\_\_\_\_  
OWNER (Signature)

\_\_\_\_\_  
(Printed name and title)

Ohio Paving & Construction Co., Inc.

\_\_\_\_\_  
CONTRACTOR (Signature)

\_\_\_\_\_  
(Printed name and title)

John DeLillo, President

LICENSE NO.:

JURISDICTION:

Int.

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| 00 11 13 | RFI Notice                            |
| 00 21 13 | Instructions to Bidders               |
| 00 22 13 | Supplementary Instructions to Bidders |
| 00 26 00 | Procurement Substitution Procedures   |
| 00 31 19 | Existing Condition Information        |
| 00 31 32 | Geotechnical Data & Report            |
| 00 41 13 | Bid Form                              |
| 00 42 13 | Unit Price List                       |
| 00 43 13 | Bid Security Forms                    |
| 00 72 13 | General Conditions                    |
| 00 73 00 | Supplemental Conditions               |

DIVISION 01 – GENERAL REQUIREMENTS

|          |                                     |
|----------|-------------------------------------|
| 01 10 00 | Summary of Work                     |
| 01 31 00 | Project Management and Coordination |
| 01 32 00 | Construction Progress Documentation |
| 01 33 00 | Submittal Procedures                |
| 01 40 00 | Quality Requirements                |
| 01 50 00 | Temporary Facilities and Controls   |
| 01 60 00 | Product Requirements                |
| 01 73 00 | Execution                           |
| 01 77 00 | Closeout Procedures                 |
| 01 78 39 | Project Record Documents            |

DIVISION 31 – EARTHWORK

|          |              |
|----------|--------------|
| 31 20 01 | Site Grading |
|----------|--------------|

DIVISION 32 – EXTERIOR IMPROVEMENTS

|          |                  |
|----------|------------------|
| 32 12 16 | Asphalt Paving   |
| 32 92 00 | Turf and Grasses |

DRAWINGS

Site Plan Sh. L2.4  
Details

Geotechnical Report

END OF SECTION



## Addendum #1

Repair/Replacement of Asphalt Pavement at  
Brecksville-Broadview Heights High School Middle School Campus  
And Elementary School

Item # 1

Warranty applies to workmanship for one year. No maintenance requirements.

Item #2

Detail #1 on sheet L3.0 and Details #2 and #5 on sheet L3.3 have been revised. See attached.

Item #3

The Unit Price List has been revised and is attached. Submit with Bid Form.

Submitted by  
Tom Zarfoss  
3/14/24

Questions submitted in writing will be answered up to 48 hours prior to the bid date, which is March 27, at Noon.

END OF ADDENDUM #1

REPAIR / REPLACEMENT OF ASPHALT PAVEMENT AT BRECKSVILLE-BROADVIEW  
HEIGHTS HIGH SCHOOL / MIDDLE SCHOOL / ELEMENTARY SCHOOL 2024

DOCUMENT 004113 - PROPOSAL FORM - STIPULATED SUM (SINGLE-PRIME CONTRACT)

1.1 BID INFORMATION

- A. Bidder: Ohio Paving & Construction Co., Inc.
- B. Project Name: Brecksville-Broadview Heights High School/Middle School Campus and Elementary School Asphalt Pavement and Miscellaneous Improvements.
- C. Project Location: Brecksville-Broadview Heights High School Stadium, located adjacent to Brecksville-Broadview Heights High School, 6380 Mill Road, Broadview Heights, Ohio 44147 and Elementary School.
- D. Owner: Brecksville-Broadview Heights City Schools.
- E. Landscape Architect: Behnke Landscape Architecture.

1.2 See Attached. - FORM OF PROPOSAL

- A. Base Bid, Single-Prime (All Trades) Contract, including Allowances: The undersigned Bidder, having carefully examined the Procurement and Contracting Requirements, Conditions of the Contract, Drawings, Specifications, and all subsequent Addenda, as prepared by Behnke Landscape Architecture and the Architect's consultants, having visited the site, and being familiar with all conditions and requirements of the Work, hereby agrees to furnish all material, labor, equipment and services, including all scheduled allowances, necessary to complete the construction of the above-named project, according to the requirements of the Procurement and Contracting Documents, for the stipulated sum of:

Two hundred sixty-four thousand, nine hundred ninety-two and 00/100 Dollars (\$ 264,992.00 ).

- B. Alternate Bids  
Alternate #01 High School West Access Drive

Eighty-seven thousand, seven hundred and 00/100 Dollars (\$ 87,700.00 ).

Alternate #01a High School West Access Drive Adjust Risers

Nine thousand and 00/100 dollars Dollars (\$ 9,000.00 ).

Alternate #02 Middle School TLC Drive

Fourteen thousand, six hundred thirty-four and 90/100 Dollars (\$ 14,634.90 ).

Alternate #03 Middle School Access Drive – Full Depth Replacement

Thirty-three thousand, two hundred seventy-eight and 00/100 Dollars (\$ 33,278.10 ).

REPAIR / REPLACEMENT OF ASPHALT PAVEMENT AT BRECKSVILLE-BROADVIEW  
HEIGHTS HIGH SCHOOL / MIDDLE SCHOOL / ELEMENTARY SCHOOL 2024

Alternate #04 Middle School Main Entrance

Ninety-nine thousand, five hundred ninety-four and 54/100 Dollars (\$ 99,594.54 ).

Alternate #05 Elementary School Playground Painting.

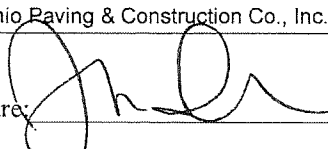
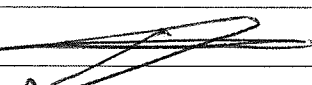
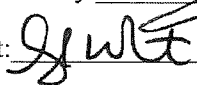
Four thousand, eight hundred forty-four and 00/100 Dollars (\$ 4,844.00 ).

1.3 ACKNOWLEDGEMENT OF ADDENDA

A. The undersigned Bidder acknowledges receipt of and use of the following Addenda in the preparation of this Bid:

1. Addendum No. 1, dated 3/14/2024.
2. Addendum No. 2, dated \_\_\_\_\_.
3. Addendum No. 3, dated \_\_\_\_\_.
4. Addendum No. 4, dated \_\_\_\_\_.

1.4 SUBMISSION OF BID

- A. Respectfully submitted this 27 day of March, 2024.
- B. Submitted By: Ohio Paving & Construction Co., Inc. (Name of bidding firm or corporation).
- C. Authorized Signature:  (Handwritten signature).
- D. Signed By: John DeLillo (Type or print name).
- E. Title: President (Owner/Partner/President/Vice President).
- F. Witnessed By:  (Handwritten signature).
- G. Attest:  (Handwritten signature).
- H. By: April White (Type or print name).
- I. Title: Assistant Secretary (Corporate Secretary or Assistant Secretary).
- J. Street Address: 38220 Willoughby Parkway.
- K. City, State, Zip: Willoughby, OH 44094.
- L. Phone: 440-975-8929.
- M. License No.: N/A.
- N. Federal ID No.: 34-1708850 (Affix Corporate Seal Here).

# ADDENDUM #1 UNIT PRICE SCHEDULE

Each Bidder shall be required to submit Unit Prices for each of the items on the Unit Price List. Unit prices as indicated on the Unit Price List are for furnished and installed work and shall govern for all additions to or deductions from the work. These unit prices shall include all overhead, profit, general conditions, as well as cost of labor and material. Unit prices shall remain valid until a Certificate of Substantial Completion has been issued. Unit prices are to be net for work in place and are to include all incidental items. Contractor to verify and

## BASE BID

| ITEM                                                                                               | QUANTITY | UNIT | UNIT PRICE | TOTAL      |
|----------------------------------------------------------------------------------------------------|----------|------|------------|------------|
| <b>AREAS #11/17 Per Sh. L2.1 and L2.2</b>                                                          |          |      |            |            |
| 1 A - 2" Asphalt Overlay Per Det #2 Sh L3.3 (no mill)<br>Includes Chip Seal; Tack Coat and Asphalt | 4,300    | sy   | 14.56      | 62,608.00  |
| 2 B - 2' Shoulder per Detail #1 Sh. L3.3                                                           | 1,184    | sf   | 3.53       | 4,179.52   |
| 3 B1 - 1' Shoulder per Detail #1 Sh L3.3                                                           | 438      | sf   | 3.78       | \$1,655.64 |
| 4 C - Add ODOT #1 and #2 Stone Per Sh L2.1/2.2                                                     | 12       | cy   | 143.71     | \$1,724.52 |
| 5 D - Full Depth Replacement Per Detail #4 L3.3                                                    | 154      | sf   | 15.08      | \$2,322.32 |
| 6 Paint Strip - Dbl Centerline and Uncurbed Edges                                                  | 1        | ls   | 1,125.00   | \$1,125.00 |

## AREA #12 Per Sh. L2.3

|                                                                                                    |       |    |          |              |
|----------------------------------------------------------------------------------------------------|-------|----|----------|--------------|
| 1 A - 2" Asphalt Overlay Per Det #2 Sh L3.3 (no mill)<br>Includes Chip Seal; Tack Coat and Asphalt | 8,500 | sy | 14.56    | \$123,760.00 |
| 2 B - 2" Mill and Fill Per Detail #2 Sh L3.3                                                       | 12    | sy | 50.00    | \$600.00     |
| 3 C - Pot Hole Repair per Detail #3 Sh L3.3                                                        | 120   | sf | 2.50     | \$300.00     |
| 4 D - Full Depth Replacement per Detail #4 Sh L3.3                                                 | 800   | sf | 9.46     | \$7,568.00   |
| 5 Paint Strip - Dbl Centerline and Uncurbed Edges                                                  | 1     | ls | 2,025.00 | \$2,025.00   |

## AREA #13

|                                                                                                    |       |    |       |             |
|----------------------------------------------------------------------------------------------------|-------|----|-------|-------------|
| 1 A - 2" Asphalt Overlay Per Det #2 Sh L3.3 (no mill)<br>Includes Chip Seal; Tack Coat and Asphalt | 2,650 | sy | 14.56 | \$38,584.00 |
| 2 Paint Strip - Dbl Centerline and Uncurbed Edges                                                  | 1     | ls | 6.75  | \$675.00    |

## CAMPUS PAINT STRIPING - All Roads and Parking Lots within Limit of Striping per Sh #L2.7

|                                                 |   |    |          |            |
|-------------------------------------------------|---|----|----------|------------|
| 1 A - High School Staff Lot                     | 1 | ls | 1180.00  | \$1,180.00 |
| 2 B - Middle School TLC Lot                     | 1 | ls | 675.00   | \$675.00   |
| 3 C - Middle School Main and Bus Lot            | 1 | ls | 5,070.00 | \$5,070.00 |
| 4 D - Middle School Staff Lot                   | 1 | ls | 1,125.00 | \$1,125.00 |
| 5 E - Board of Education Lot                    | 1 | ls | 395.00   | \$395.00   |
| 6 F - Drives - Dbl C/L&Edges of uncurbed roads* | 1 | ls | 3,830.00 | \$3,830.00 |

## ELEMENTARY SCHOOL CAMPUS PAINT STRIPING - Per Sh #3.4

|                               |   |    |          |            |
|-------------------------------|---|----|----------|------------|
| A - Main Lot                  | 1 | ls | 1,690.00 | \$1,690.00 |
| B - Bus Parking (See Alt #05) | 1 | ls | 1,000.00 | \$1,000.00 |
| C - Drives                    | 1 | ls | 2,900.00 | \$2,900.00 |

\* Excluding Areas #11,12,13, & 17

# ADDENDUM #1 UNIT PRICE SCHEDULE

## ALTERNATE BIDS

### Alternate #01 - West Access Drive - Mill and Fill/Adjust Sanitary and Storm Risers

|                                               |       |    |          |             |
|-----------------------------------------------|-------|----|----------|-------------|
| 1 A - 2" Mill and Fill Per Det #2 Sh L3.3     | 4,150 | sy | 18.00    | \$74,700.00 |
| 2 B - Raise Manholes per Sh L2.4, L2.5 , L3.2 | 3     | ea | 1,800.00 | \$5,400.00  |
| 3 C - Raise Catch Basin #1 Per Sh L2.4        | 1     | ea | 1,800.00 | \$1,800.00  |
| 4 D - Raise Catch Basin #2 Per Sh L2.5        | 1     | ea | 1,800.00 | \$1,800.00  |

### Alternate #01a - West Access Drive - Adjust Sanitary and Storm Risers

|                                               |   |    |          |            |
|-----------------------------------------------|---|----|----------|------------|
| 1 B - Raise Manholes per Sh L2.4, L2.5 , L3.2 | 3 | ea | 1,800.00 | \$5,400.00 |
| 2 C - Raise Catch Basin #1 Per Sh L2.4        | 1 | ea | 1,800.00 | \$1,800.00 |
| 3 D - Raise Catch Basin #2 Per Sh L2.5        | 1 | ea | 1,800.00 | \$1,800.00 |

### Alternate #02 - Middle School TLC Drive - Mill and Fill/Full Depth Replacement - Per Sh L2.6

|                                                                                                    |     |    |         |            |
|----------------------------------------------------------------------------------------------------|-----|----|---------|------------|
| 1 A - 2" Asphalt Overlay Per Det #2 Sh L3.3 (no mill)<br>Includes Chip Seal; Tack Coat and Asphalt | 150 | sy | 18.00   | \$2,700.00 |
| 2 6"x18" Concrete Curb per Det #1 Sh L3.0                                                          | 135 | lf | 49.00   | \$6,615.00 |
| 3 10" ODOT # 304 Limestone Base per Det #1 Sh L3.1                                                 | 30  | sy | 82.00   | \$2,460.00 |
| 4 4" ODOT # 448 Asphalt per #1 Sh L3.0                                                             | 30  | sy | 43.33   | \$1,299.90 |
| 5 4" Topsoil/Fine Grade and Seed                                                                   | 1   | ls | 1060.00 | \$1,060.00 |
| 6 Paint Stripe Dbl Center Line                                                                     | 1   | ls | 500.00  | \$500.00   |

### Alternate #03 - Middle School TLC Drive - Full Depth Replacement - Per Sh L2.7

|                                                  |     |    |          |            |
|--------------------------------------------------|-----|----|----------|------------|
| 1 Demo/Remove Existing Asphalt and Base Complete | 330 | sy | 23.65    | \$7,804.50 |
| 2 6"x18" Concrete Curb per Det #1 Sh L3.0        | 135 | ls | 49.00    | \$6,615.00 |
| 3 10" ODOT # 304 Limestone per Det #4 Sh L3.3    | 330 | sy | 23.00    | \$7,590.00 |
| 4 4" ODOT # 448 Asphalt per Detail #4 Sh L3.3    | 330 | sy | 29.42    | \$9,708.60 |
| 5 4" Topsoil/Fine Grade and Seed                 | 1   | ls | 1,060.00 | \$1,060.00 |
| 6 Paint Stripe Dbl Center Line                   | 1   | ls | 500.00   | \$500.00   |

### Alternate #04 - Middle School Main Entrance - 2" Mill/Fill - Areas #3 and 4 Sh L2.0

|                                          |       |    |          |             |
|------------------------------------------|-------|----|----------|-------------|
| 1 2" Mill and Fill per Detail #2 Sh L3.3 | 5,679 | sy | 17.26    | \$98,019.54 |
| 2 Paint Stripe Dbl Center Line           | 1     | ls | 1,575.00 | \$1,575.00  |

### Alternate #05 - Elementary School Playground Painting - Per Sh L3.5

|                                           |   |    |          |            |
|-------------------------------------------|---|----|----------|------------|
| 1 Repaint Playground Graphics Per Sh L3.5 | 1 | ls | 4,844.00 | \$4,844.00 |
|-------------------------------------------|---|----|----------|------------|

Owner to supply templates.

Cost per cubic yard for excavation unsuitable subgrade and replacing with approved fill.

\$150.00

NOTE: QUANTITIES ARE FOR CONTRACTOR CONVENIENCE ONLY. CONTRACTOR WILL BE RESPONSIBLE FOR VERIFYING QUANTITIES.